

Cochran
Signature of Sponsor

AMEND Senate Bill No. 1413*

House Bill No. 1376

by deleting § 57-7-102(3) in SECTION 2 and substituting:

(3) "Hemp-derived cannabinoid":

(A) Means:

(i) A cannabinoid other than delta-9 tetrahydrocannabinol, or an isomer derived from such cannabinoid, that is derived from hemp in a concentration of more than one-tenth of one percent (0.1%);

(ii) A hemp-derived product containing delta-9 tetrahydrocannabinol in a concentration of not more than three-tenths of one percent (0.3%) on a dry weight basis; or

(iii) A hemp-derived product containing a total THC content or a total theoretical THC content of not more than three-tenths of one percent (0.3%) on a dry weight basis;

(B) Includes, but is not limited to:

(i) Delta-8 tetrahydrocannabinol;

(ii) Delta-10 tetrahydrocannabinol;

(iii) Hexahydrocannabinol; and

(iv) Tetrahydrocannabivarin (THCv); and

(C) Does not include:

(i) Cannabichromene (CBC/CBCa/CBCv);

(ii) Cannabicitran (CBT/CBTa);

(iii) Cannabicyclol (CBL/CBLa);

- (iv) Cannabidiol (CBD/CBDa/CBDv/CBDp);
- (v) Cannabielsoin (CBE/CBEa);
- (vi) Cannabigerol (CBG/CBGa/CBGv/CBGm);
- (vii) Cannabinol (CBN/CBNa);
- (viii) Cannabivarin (CBV/CBVa);
- (ix) Hemp-derived feed products allowed under title 44, chapter 6;
- (x) Hemp-derived fiber, grain, or stalk; provided, that the product does not contain a hemp-derived cannabinoid in a concentration of more than three-tenths of one percent (0.3%) on a dry weight basis;
- (xi) Tetrahydrocannabinolic acid (THCa) in a concentration greater than three-tenths of one percent (0.3%) on a dry weight basis;
- (xii) Tetrahydrocannabiphorol (THCp);
- (xiii) A synthetic cannabinoid; or
- (xiv) A substance that is categorized as a Schedule I controlled substance on or after July 1, 2023, including a substance that may be identified in subdivision (3)(B);

AND FURTHER AMEND by deleting subdivisions (10) and (11) in § 57-7-102 in SECTION 2 and substituting:

(10) "Synthetic cannabinoid" means a substance with an identical or substantially similar chemical structure to or the pharmacological activity of a cannabinoid, but that is not extracted from hemp or hemp plant parts or derived from hemp or hemp plant parts;

(11) "Tetrahydrocannabinolic acid" or "THCa" is the precursor of delta-9 THC;

(12) "THC" means a tetrahydrocannabinol, tetrahydrocannabinolic acid, a THC component, or any derivative thereof;

(13) "THC component" means a naturally occurring cannabinoid component of industrial hemp or hemp;

(14) "Total THC" means a hemp-derived cannabinoid or a combination of tetrahydrocannabinol, tetrahydrocannabinolic acid, a THC component, or a derivative thereof;

(15) "Total theoretical tetrahydrocannabinol content" or "total theoretical THC content" is the maximum amount of possible delta-9 tetrahydrocannabinol if total conversion were to occur, calculated as the sum of the concentration of delta-9 tetrahydrocannabinol added to the amount of tetrahydrocannabinolic acid after such amount is multiplied by eight hundred seventy-seven thousandths (0.877) on a dry weight basis and reported to two (2) significant figures, and expressed in a mathematical formula as follows:

$$\text{Total theoretical THC} = ([\text{delta 9 THC}] + ([\text{THCa}] \times 0.877)); \text{ and}$$

(16) "Wholesaler" means a person or entity that purchases finished and packaged for consumption HDCPs, not considered intermediate products still in the pre-packaging stage, from suppliers licensed under this chapter, or from other wholesalers licensed under this chapter, and that sells HDCPs for resale and not for consumption.

AND FURTHER AMEND by deleting § 57-7-114(a) in SECTION 2 and substituting:

(a) It is an offense to manufacture, cultivate, produce, or sell in this state:

(1) Hemp, harvested hemp, hemp plant parts, HDCPs, or another product that contains a total THC content, or a total theoretical THC content, in excess of three-tenths of one percent (0.3%) on a dry weight basis;

(2) A synthetic cannabinoid, or an HDCP or any other product, which contains a synthetic cannabinoid; or

(3) A derivative of hemp or an HDCP that contains tetrahydrocannabiphorol (THCp).

AND FURTHER AMEND by deleting § 57-7-107(d)(4) and substituting:

(4) Sample and analyze HDCPs produced, distributed, and offered for sale in this state for cannabinoid concentrations, tested according to protocols promulgated by rule of the commission. Commission testing must be conducted by post-decarboxylation to determine a cannabinoid profile of samples tested, including their THC concentrations. As used in this

subdivision (d)(4), "post-decarboxylation" means the quantification by percentage of the resulting tetrahydrocannabinol of a sample if carboxyl groups are removed from all molecules containing tetrahydrocannabinol within the sample.